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Order QR

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 23-10-2026

CORAM

THE HON'BLE MR.JUSTICE SUNDER MOHAN

AND

THE HON'BLE MR.JUSTICE GK.MUTHUKUMAAR

WP No. 43531 of 2026 and WMP No.48851 of 2026

CNR: {HCMA012567302026}

Case QR

S.Kulandaisamy
S/o. Late. Sabari Muthu,
No. 113, Thirumalai Nagar Annexe,
OMR , Rajiv Gandhi Salai,
Chennai 96

..Petitioner(s)

Vs

1. The Additional Secretary to Government
   Housing and Urban Development Department,
   Secretariat, Chennai 09

2. The Commissioner
   Greater Chennai Corporation,
   Ripon Buildings, Chennai 03

3. The District Collector
   Chengalpattu District

4. The Revenue Divisional Officer
   Tambaram Division,
   Tambaram , Chennai 45

5. The Thasildar
   Tambaram Taluk

6. The Executive Engineer
   Greater Chennai Corporation,
   Chennai

..Respondent(s)

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Writ Petition filed under Article 226 of the Constitution of India to issue a writ of Mandamus forbearing the respondents particularly 6th respondent from demolishing the petitioners building in S.No. 35/1A1 part measuring to an extent of 3560 sq.ft situated at Plot No.113, Thirumalai Nagar Annexe, Perungudi Village, Tambaram Taluk, presently Kancheepuram district till the final order passed by the 1st respondent.

For Petitioner(s): Mr.K.Praveen Raj
for Mr.G.Mohammed Aseef

For Respondent(s): Mr.K.Surendar
Special Government Pleader
For R.1, R.3 to R.5

ORDER

(Order of the Court was made by Sunder Mohan J.)

The writ petition is for issuance of a Mandamus forbearing the respondents, particularly the sixth respondent from demolishing the petitioner's building in Survey No.35/1A/1 Part, pending disposal of the revision filed under Section 80A of the Tamil Nadu Town and Country Planning Act, 1971 dated 24.07.2026.

2. The learned Special Government Pleader, on instructions, would submit that the revision is pending consideration and orders would be passed within a period of three weeks as the petitioner and the respondents have already been personally heard.

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3. In view of the above submission, the respondents are directed to dispose the revision within a period of four weeks from the date of receipt of a copy of this order and shall not take any action for eviction pending disposal of the revision under Section 80A of the Tamil Nadu Town and Country Planning Act, 1971.

4. With the above observation, the writ petition is disposed of. No costs. Consequently, connected miscellaneous petition is closed.

(S.M.,J.) (G.K.M.,J.)
23-10-2026

Index: Yes/No
Speaking/Non-speaking order
Neutral Citation: Yes/No

SR/MMI

To

1. The Additional Secretary to Government
   Housing and Urban Development department,
   Secretariat, Chennai 09.

2. The Commissioner
   Greater Chennai Corporation,
   Ripon Buildings, Chennai 03

3. The District Collector
   Chengalpattu District

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4. The Revenue Divisional Officer
   Tambaram Division,
   Tambaram , Chennai 45

5. The Thasildar
   Tambaram Taluk

6. The Executive Engineer
   Greater Chennai Corporation,
   Chennai

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SUNDER MOHAN, J.
AND
GK.MUTHUKUMAAR, J.

SR/MMI

WP No. 43531 of 2026

23-10-2026

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